

24PSCV04231 24PSCV04231

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loanDepot.com, LLC v. Grymonprez,
et al., Case No. 24PSCV04231

ORDER ON MOTION

TO VACATE DEFAULT AND DEFAULT JUDGMENT

Defendant Adam Grymonprez's Motion
to Vacate Default and Default Judgment is DENIED.

Background

Plaintiff loanDepot.com, LLC ("Plaintiff") alleges as follows: Plaintiff is the current noteholder and beneficiary of the deed of trust recorded on September 23, 2014 against the real property located at 232 W. 2nd Street in San Dimas ("subject property"); Tracy Grymonprez ("Tracy"), Adam Grymonprez ("Adam") and Sandra K. Pratt ("Sandra") are the current record owners. Capital One Bank (USA), National Association ("Capital One"), Discover Bank ("Discover"), Department of Housing and Urban Development ("HUD") and Unifund CCR, LLC ("Unifund") may claim interests in the subject property by virtue of subordinate abstract judgments and deed of trust recorded against the subject property. Additionally, Los Angeles County Tax Collector ("L.A. Tax Collector") and Sunrun Inc. ("Sunrun") may claim interests in the subject property by virtue of a certificate of liens and a Notice of an Independent Solar Energy Contract, respectively, recorded against the subject property. Tracy, Adam and Sandra failed to pay the monthly installment on the note due on December 1, 2023 and have failed to pay all subsequent monthly installments.

On December 11, 2024, Plaintiff filed a complaint, asserting a cause of action for Judicial Foreclosure against Tracy, Adam, Sandra, Capital One, Discover, HUD, Unifund, L.A. Tax Collector, Sunrun and Does 1-10.

On February 24, 2025, Unifund's, L.A. Tax Collector's, Capital One's, Sunrun's and Discover's defaults were entered.

On August 11, 2025, Plaintiff filed an "Amendment to Complaint," wherein Randy Argo was named in lieu of Doe 1; that day, Adam's default was entered.

On November 4, 2025, Tracy's default was entered.

A Post-Mediation Status Conference/Further Case Management Conference is set for July 17, 2026.

Legal Standard

Code of Civil Procedure
section 473, subdivision (b)

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. . ." (Code Civ. Proc., § 473, subd. (b).)

Code of Civil Procedure
section 473, subdivision (d)

“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).)

Code of Civil Procedure
section 473.5

“When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5, subd. (a).)

“A notice of motion to set aside a default or default judgment and for leave to defend the action . . . shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

“Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party’s lack of actual notice in time to defend the action was not caused by the party’s avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.” (Code Civ. Proc., § 473.5, subd. (c).)

Discussion

Adam

moves the Court, pursuant to Code of Civil Procedure sections 473.5 and 473, subdivisions (b) and (d) and the Court's inherent equitable powers, for an order vacating the entry of his default on August 11, 2025 and any default judgment.

At the

outset, the Court notes that the motion originally came on calendar for hearing on June 2, 2026 and was continued to the instant date due to a notice issue. The notice issue has since been corrected, as evidenced by the proof of service filed by Adam on July 13, 2026.

Adams

asserts that, while "Plaintiff claims substituted service. . . [he] never received the summons and complaint." (Motion, 3:4-5; see also, 3:15-17.) Adams further asserts that "Plaintiff's substituted service was defective because: Plaintiff failed to exercise reasonable diligence before resorting to substituted service." (Id., 4:25-26.) Although Adams has not attached the subject proof of service, the docket reflects that on January 27, 2025, the summons and complaint were substitute served on a "Gary Srymonprez – Co-Resident" on January 23, 2025 at 11:30 a.m. at 1147 W Tudor Street in San Dimas ("Tudor Street Address"). The subject proof of service is accompanied by a "Declaration of Diligence" listing six separate service attempts on four different dates at two different addresses (i.e., with the first three attempts made at 234 W 2nd St. in San Dimas and the latter three attempts made at the Tudor Street Address.

Adams'

declaration, however, is devoid of any information regarding the purported insufficiency of service; he states only that he was not personally served with the summons and complaint and that he did not learn of the "judgment" [FN] against him until his divorce attorney found it online during the first week of September 2025. (Adam Decl., 7:8-10.)

Adam

next asserts that he did not receive actual notice of this action in time to defend, again "due to defective substitute service." Adam's declaration, however, does not "show[] under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or

inexcusable neglect,” as required by Code of Civil Procedure section 473.5, subdivision (b).

Adam

asserts that the default was entered as a result of mistake, inadvertence, surprise, or excusable neglect. First, the motion is untimely to the extent it is based on this ground. The record reflects that Adam’s default was entered on August 11, 2025 and that the motion was filed on February 10, 2026. The record further reflects that the motion was not served on Plaintiff’s counsel until June 16, 2026, over ten months after default was entered. An application for discretionary relief must be made “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) “[A]n application for relief under [section 473, subdivision (b)] is deemed to be made upon filing in court of a notice of motion and service of the notice of motion on the adverse party.” (Arambula v. Union Carbide Corp. (2005) 128 Cal.App.4th 333, 341 [citation omitted; emphasis theirs].) At any rate, Adam’s declaration is devoid of any facts supporting discretionary relief.

Finally, Adam asserts that “equity requires relief where a party is deprived of a fair adversarial hearing due to extrinsic mistake.” (Motion, 6:4-5.) Adam’s declaration is devoid of any facts supporting extrinsic mistake.

The motion is denied.

[FN] The Court observes that default has been entered against Adam; there is no default judgment as of this date.